

HOUSE No. 5461

The Commonwealth of Massachusetts

PRESENTED BY:

Alice Hanlon Peisch and Michael J. Barrett

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Weston to grant an additional license for sale of all alcoholic beverages to be drunk on the premises.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Alice Hanlon Peisch</i>	<i>14th Norfolk</i>	<i>5/26/2026</i>

HOUSE No. 5461

By Representative Peisch of Wellesley and Senator Barrett, a joint petition (accompanied by bill, House, No. 5461) of Alice Hanlon Peisch (by vote of the town) that the town of Weston be authorized to grant an additional license for sale of all alcoholic beverages to be drunk on the premises in said town. Consumer Protection and Professional Licensure. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Weston to grant an additional license for sale of all alcoholic beverages to be drunk on the premises.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the
2 licensing authority of the town of Weston may grant an additional license for the sale of all
3 alcoholic beverages to be drunk on the premises pursuant to section 12 of said chapter 138 to
4 Weston Breakfast, LLC, located at the premises known as 31 Center Street in the town of
5 Weston. The license shall be subject to all of said chapter 138 except said section 17.

6 (b) A license granted pursuant to this section shall only be exercised in the dining room
7 of a common victualler and such other public rooms or areas as may be deemed reasonable and
8 appropriate by the licensing authority as certified in writing.

9 (c) The licensing authority shall not approve the transfer of a license granted pursuant to
10 this section to any other location, but it may grant the license to a new applicant at the same

11 location if the applicant files with the licensing authority a letter from the department of revenue
12 and a letter from the department of unemployment assistance indicating that the license is in
13 good standing with those departments and that all applicable taxes, fees and contributions have
14 been paid.

15 (d) If a licensee terminates or fails to renew the license granted pursuant to this section or
16 any such license is cancelled, revoked, or no longer in use, it shall be returned physically, with
17 all of the legal rights, privileges and restrictions pertaining thereto, to the licensing authority
18 which may, within 3 years of such return, then grant the license to a new applicant at the same
19 location and under the same conditions as specified in this section, otherwise such license shall
20 dissolve.

21 (e) The license granted pursuant to this section shall be issued within 2 years after the
22 effective date of this act; provided, however, that a license that is originally granted within that
23 time period, it may be granted to a new applicant pursuant to subsections (c) and (d) thereafter.

24 SECTION 2. This act shall take effect upon its passage.